

SENATE No. 2959

Senate, February 12, 2026 -- Text of the Senate Bill regarding fair housing practices in the Commonwealth (Senate, No. 2959) (being the text of Senate, No. 2947, printed as amended)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regarding fair housing practices in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 55 of chapter 13 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by adding the following sentence:- Not less than annually,
3 the board shall publish: (i) a summary of complaints filed against license holders in the previous
4 calendar year; provided, however, that any personally identifiable information published in the
5 summary shall be de-identified; (ii) the number and type of disciplinary actions taken by the
6 board related to discriminatory practices, including, but not limited to, any disciplinary action
7 taken pursuant to section 87AAA of chapter 112; and (iii) the names of any license holder whose
8 license has been suspended or revoked by the board as a result of the license holder engaging in
9 discriminatory practices.

10 SECTION 2. Section 87PP of chapter 112 of the General Laws, as so appearing, is
11 hereby amended by striking out, in line 4 and 5, the word “salesmen” and inserting in place
12 thereof the following word:- salespersons.

SECTION 3. Said section 87PP of said chapter 112, as so appearing, is hereby further amended by striking out the definition of “Real estate salesman” and inserting in place thereof the following definition:-

“Real estate salesperson” or “salesperson”, an individual who performs or engages in any transaction included in the foregoing definition of broker, except the completing of negotiation of any agreement or transaction which results or is intended to result in sale, exchange, purchase, renting or leasing of any real estate.

SECTION 4. Section 87QQ of said chapter 112, as so appearing, is hereby amended by striking out, in line 5, the word “salesman” and inserting in place thereof the following word:- salesperson.

SECTION 5. Section 87RR of said chapter 112, as so appearing, is hereby amended by striking out, in lines 2, 5, 7, 8, 11 and 12, 13, 16, 20 and 21, 22 and 28, the word “salesman” and inserting in place thereof, in each instance, the following word:- salesperson.

SECTION 6. Section 87SS of said chapter 112, as so appearing, is hereby amended by striking out, in lines 1, 26 and 32, the word “salesman” and inserting in place thereof, in each instance, the following word:- salesperson.

SECTION 7. The second paragraph of said section 87SS of said chapter 112, as so appearing, is hereby amended by striking out the first sentence and inserting in place thereof the following sentence:- Every individual applicant for a license as a salesperson who is required to take an examination therefor shall, as a prerequisite to taking such examination, submit proof satisfactory to the board that such individual has completed courses in real estate subjects approved by the board; provided, however, that such courses shall total 40 classroom hours of

instruction and shall include not less than 4 hours on fair housing law; and provided further, that applicants having successfully completed a course in real property while enrolled in an accredited law school in the commonwealth may also take such examination.

SECTION 8. Said section 87SS of said chapter 112, as so appearing, is hereby further amended by striking out, in lines 35 and 43, the word “salesman’s” and inserting in place thereof, in each instance, the following word:- salesperson’s.

SECTION 9. Section 87UU of said chapter 112, as so appearing, is hereby amended by striking out, in lines 53 and 56, the word “salesman” and inserting in place thereof, in each instance, the following word:- salesperson.

SECTION 10. Said section 87UU of said chapter 112, as so appearing, is hereby further amended by striking out, in line 57, the word “salesman’s” and inserting in place thereof the following word:- salesperson’s.

SECTION 11. Section 87VV of said chapter 112, as so appearing, is hereby amended by striking out, in lines 1, 2, 3, 5 and 6, the word “salesman” and inserting in place thereof, in each instance, the following word:- salesperson.

SECTION 12. Section 87WW of said chapter 112, as so appearing, is hereby amended by striking out, in lines 2 and 6, the word “salesman” and inserting in place thereof, in each instance, the following word:- salesperson.

SECTION 13. Said section 87WW of said chapter 112, as so appearing, is hereby further amended by striking out, in line 8, the word “salesmen” and inserting in place thereof the following word:- salespersons.

SECTION 14. Section 87XX of said chapter 112, as so appearing, is hereby amended by striking out, in lines 3, 6, 10 and 32, the word “salesman” and inserting in place thereof, in each instance, the following word:- salesperson.

SECTION 15. Said section 87XX of said chapter 112, as so appearing, is hereby further amended by striking out, in lines 39 and 42, the word “salesmen” and inserting in place thereof, in each instance, the following word:- salespersons.

SECTION 16. Section 87XX1/2 of said chapter 112, as so appearing, is hereby amended by striking out the first paragraph and inserting in place thereof the following paragraph:-

A person holding a license as a real estate broker or salesperson shall, within their renewal period, satisfactorily complete courses or programs of instruction approved by the board; provided, however, that attendance at such courses or programs of instruction shall be not less than 6 hours but not more than 12 hours as determined by the board. The curriculum contained in such courses or programs shall contain: (i) not less than 2 hours on fair housing law; and (ii) not less than 4 hours selected from any of the following subjects: equal employment opportunity, accessibility for individuals with disabilities, agency law, environmental issues in real estate, zoning and building codes, real estate appraisal and financing, property tax assessments and valuation and real estate board regulations.

SECTION 17. Said section 87XX1/2 of said chapter 112, as so appearing, is hereby further amended by striking out, in lines 49 and 55, the word “salesman” and inserting in place thereof, in each instance, the following word:- salesperson.

SECTION 18. Section 87YY1/2 of said chapter 112, as so appearing, is hereby amended by striking out, in lines 2 and 6, the word “salesmen” and inserting in place thereof, in each instance, the following word:- salespersons.

SECTION 19. Section 87ZZ of said chapter 112, as so appearing, is hereby amended by striking out, in lines 4 and 16, the word “salesman’s” and inserting in place thereof, in each instance, the following word:- salesperson’s.

SECTION 20. Section 87AAA of said chapter 112, as so appearing, is hereby amended by striking out, in lines 3, 16, 18, 40, 42, 43, 45, 48, 65 and 79, the word “salesman” and inserting in place thereof, in each instance, the following word:- salesperson.

SECTION 21. Said section 87AAA of said chapter 112, as so appearing, is hereby further amended by inserting after the word “discrimination”, in line 38, the following words:- , or any other agency that administers fair housing laws and is certified by the federal Assistant Secretary for Fair Housing and Equal Opportunity pursuant to the federal Fair Housing Act, 42 U.S.C. 3601 through 42 U.S.C. 3619, inclusive.

SECTION 22. Said section 87AAA of said chapter 112, as so appearing, is hereby further amended by inserting after the word “commission”, in lines 38 and 39, inclusive, the following words:- or agency.

SECTION 23. Said section 87AAA of said chapter 112, as so appearing, is hereby further amended by inserting after the word “commission”, in line 44, the following words:- or agency.

95 SECTION 24. Said section 87AAA of said chapter 112, as so appearing, is hereby further
96 amended by striking out, in line 49, the word “ninety” and inserting in place thereof the
97 following figure:- 180.

98 SECTION 25. The first paragraph of said section 87AAA of said chapter 112, as so
99 appearing, is hereby amended by inserting after the third sentence the following sentence:- The
100 board, after notice by the office of the attorney general that a court in a matter brought by the
101 office of the attorney general has made a finding, which has become final, that a licensed broker
102 or salesperson committed an unlawful practice in violation of chapter 151B arising out of or in
103 the course of the person’s occupation as a licensed broker or salesperson, shall suspend the
104 license of said broker or salesperson for a period of 60 days; provided, however, that if the board
105 determines that the violation by such licensed broker or salesperson occurred within 2 years of
106 the date of a prior finding by a court of a violation of said chapter 151B, which has become final,
107 the board shall suspend the license of such broker or salesperson for a period of 180 days. An
108 agency empowered to make referrals to the board under this section, including the office of the
109 attorney general, shall make all such referrals that qualify under this section.

110 SECTION 26. Said section 87AAA of said chapter 112, as so appearing, is hereby further
111 amended by striking out, in lines 60 and 67, the word “salesmen” and inserting in place thereof,
112 in each instance, the following word:- salespersons.

113 SECTION 27. Section 87AAA3/4 of said chapter 112, as so appearing, is hereby
114 amended by striking out, in line 2, the word “salesmen” and inserting in place thereof the
115 following word:- salespersons.

116 SECTION 28. Said section 87AAA3/4 of said chapter 112, as so appearing, is hereby
117 further amended by striking out, in lines 22, 26, 41, 43, 46, 63 and 67, the word “salesman” and
118 inserting in place thereof, in each instance, the following word:- salesperson.

119 SECTION 29. Section 87CCC of said chapter 112, as so appearing, is hereby amended
120 by striking out, in line 2 and 3, the word “salesman” and inserting in place thereof, in each
121 instance, the following word:- salesperson.

122 SECTION 30. Section 87DDD1/2 of said chapter 112, as so appearing, is hereby
123 amended by striking out, in line 3, the word “salesman” and inserting in place thereof the
124 following word:- salesperson.